

rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Non-Opposition

The legal authorities recognize that a party’s failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to oppose this Motion to Quash with legal authorities, Plaintiff concedes all the contentions and arguments in the moving papers.

California courts recognize that a party’s failure to file a proper opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Here, Plaintiff does not file a Memorandum of Points and Authorities contesting any of the legal authorities cited by Delta. Her opposition consists of her declaration, which does not contest any of the factual statements and legal arguments asserted by Delta. Indeed, her declaration states, “I request the court to allow me time to properly serve in the manner required by the defendants. I seek legal help and to the best of our knowledge appeared was the person to serve the documents.”

Held to the standard of a practitioner before the Court, Plaintiff’s admission of improper service is sufficient to grant Delta’s Motion to Quash Summons and Complaint.

Ruling

1. Delta’s Motion to Quash Summons and Complaint is **granted**.
2. The Court will execute the proposed order lodged by Delta on November 26, 2025, and will attach a copy of this tentative ruling.

13. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND HOUSING AUTHORITY

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 13, 14, and 15, which are:

1. Defendant Richmond Housing Authority's Demurrer to the Complaint
2. Defendant City of Richmond's Demurrer to the Complaint
3. Defendant Richmond Neighborhood Stabilization Corporation's Demurrer to the Complaint

Collectively, the "Richmond Defendants."

All three demurrers were filed and served on November 19, 2025. Because Plaintiff Martha Cauch ("Plaintiff") did not file a timely opposition to each of the above demurrers, all three Demurrers are **sustained** without leave to amend.

Background

In this case, Plaintiff alleges that she was injured when a kitchen cabinet fell on her while residing at a dwelling owned and/or operated by the City of Richmond and/or the City of Richmond Housing Authority. She filed a complaint against several defendants, including the above entities.

On November 19, 2025, Defendants Richmond Housing Authority, City of Richmond, and Richmond Neighborhood Stabilization Corporation, (collectively, "Richmond Defendants") filed Demurrers to Plaintiff's Complaint, asserting that each of cause of action fails to state causes of action against the Richmond Housing Authority. (CCP 430.10(e)). Plaintiff did not file a timely opposition with the Court as required by Cal. Code of Civ. Proc § 1005(b).

On March 11, 2026, Defendant Richmond Neighborhood Stabilization Corporation ("RNSC") filed a Notice of Non-Opposition. RNSC further requested that the demurrer be sustained without leave, and that the cross-complaints filed against it by Cross-Defendants Salvador Gonzalez and Schlatter Realtors for indemnity be dismissed.

Analysis

Non-Opposition to City of Richmond Neighborhood Stabilization Corporation's Demurrers

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes

waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Applied here, the Court finds that failure to timely RNSC is a deemed to Plaintiff's consent to the sustaining the Demurrer without leave to amend. The Court finds good cause to grant the relief requested by RNSC.

Effect of Late Opposition to the City of Richmond and City of Richmond Housing Authority's Demurrers

Absent compelling circumstances, this Court consistently and strictly construes all procedural deadlines as mandatory. This Court maintains a judicial philosophy that statutory deadlines for motions and other procedural relief contain firm timelines which the legislature has set in order to preserve due process. The Code of Civil Procedure, the California Rules of Court, and local court rules pertaining to deadlines are not mere suggestions. The rules of procedure are commands which ensure fairness by their enforcement.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them."

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion **shall be filed with the court** and copy served on each party at least nine court days... before the hearing." [Emphasis added] Nine court days before the hearing is March 5, 2026. Plaintiff did not timely file an opposition to the Demurrers filed by the City of Richmond and the City of Richmond Housing Authority. Plaintiff's counsel apparently served opposition counsel with her opposition, but did not file a timely opposition with the Court as required by Cal. Code of Civ. Proc §§ 1005(b), 1010.6(a)(4) and Local Rule 3.42 on March 5, 2026 by 11:59:59 p.m. Plaintiff filed a late opposition to the City of Richmond's Demurrer, which was time stamped at 12:56 p.m. on March 6, 2026, over twelve hours late. The opposition did not contain the requisite request for leave to file a late opposition, and did not contain a declaration which attempts to show good cause as to why the opposition was late. Accordingly, the Court exercises its discretion to reject the late filing.

After considering the moving papers by the Richmond Defendants in light of the foregoing statutory and decisional authorities, the Court finds good cause to sustain their demurrers. As such, the Court makes the following rulings and orders.

Ruling

1. Defendant Richmond Neighborhood Stabilization Corporation's Demurrer to the Complaint is **sustained** without leave to amend. The Court also **dismisses** the cross-complaints of Salvador

Gonzalez filed October 20, 2025 and the Cross-Complaint of Schlatter Realtors filed January 15, 2026 for indemnity.

2. The Court does not consider the late opposition by the Plaintiff and the reply brief filed by the City of Richmond and City of Richmond's Housing Authority.
3. The Court **sustains** the Demurrers of the City of Richmond and the City of Richmond's Housing Authority without leave to amend.
4. Counsel for the Richmond Defendants shall prepare and e-file a proposed order conforming to the foregoing ruling no later than five (5) days from the date of the hearing, and shall attach a copy of this tentative ruling.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

See Line 13.

15. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND NEIGHBORHOOD STABILIZATION CORPORATION
TENTATIVE RULING:

See line 13.

16. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
HEARING ON DEMURRER TO:
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Before the Court is a demurrer by General Motors LLC to Plaintiff's complaint. For the reasons set forth, the demurrer to the sixth cause of action is **overruled**. The Court imposes a monetary sanction of \$500 against the demurring party/moving party and its counsel for failure to meet and confer and file the meet and confer declaration pursuant to Code of Civil Procedure sections 430.41(a) and 435.5(a) as ordered by the Court in its February 18, 2026 tentative ruling and minute order. The sanction shall be paid to the Court within 30 days of this ruling.

Background

Plaintiff CTE Group filed a complaint against defendant General Motors LLC ("GM") alleging claims related to its purchase of a new 2023 Chevrolet Tahoe from Concord Chevrolet. (Compl. ¶¶ 5, 38.) CTE alleges that GM manufactures, sells and distributes Chevrolet vehicles, and that Concord Chevrolet is "certified" by GM to sell those vehicles. (Compl. ¶¶ 2, 6.) Plaintiff received written, express and implied warranties in connection from GM with its purchase of the vehicle. (Compl. ¶¶ 8, 9.)

Plaintiff alleges the vehicle was equipped with a 6.2L V8 engine which is known by GM to be predisposed to defects which impair its function and use. (Compl. ¶ 16.) Plaintiff alleges it made a